

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1403

BY FINANCE COMMITTEE

AN ACT

RELATING TO THE APPROPRIATION TO THE DEPARTMENT OF ENVIRONMENTAL QUALITY;
APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF ENVIRONMENTAL
QUALITY FOR FISCAL YEAR 2027; REDUCING THE APPROPRIATION TO THE DE-
PARTMENT OF ENVIRONMENTAL QUALITY FOR FISCAL YEAR 2027; AUTHORIZING
ADDITIONAL FULL-TIME EQUIVALENT POSITIONS; APPROPRIATING AND TRANS-
FERRING MONEYS FROM THE DEQ AIR PERMITTING FEES ACCOUNT TO THE IDAHO AIR
QUALITY PERMITTING FUND; APPROPRIATING AND TRANSFERRING MONEYS FROM
THE DEQ DRINKING WATER FEES ACCOUNT TO THE PUBLIC WATER SYSTEM SUPER-
VISION FUND; APPROPRIATING AND TRANSFERRING MONEYS FROM THE HAZARDOUS
WASTE EMERGENCY FUND TO THE SOLID WASTE REGULATORY FUND; AND DECLARING
AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. In addition to any other appropriation provided by law,
there is hereby appropriated to the Department of Environmental Quality the
following amounts to be expended according to the designated programs and
expense classes from the listed funds for the period July 1, 2026, through
June 30, 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
I. WATER QUALITY:					
FROM:					
IPDES Program					
Fund	\$181,700	\$200,000			\$381,700
II. WASTE MANAGEMENT AND REMEDIATION:					
FROM:					
Environmental Remediation (Triumph Mine)					
Fund	\$200,000	\$1,000,000		\$30,000	\$1,230,000
Solid Waste Regulatory					
Fund	<u>350,000</u>	<u>35,000</u>	<u>\$15,000</u>	<u>0</u>	<u>400,000</u>
TOTAL	\$550,000	\$1,035,000	\$15,000	\$30,000	\$1,630,000
GRAND TOTAL	\$731,700	\$1,235,000	\$15,000	\$30,000	\$2,011,700

1 SECTION 2. Notwithstanding any other provision of law to the contrary,
2 the appropriation made to the Department of Environmental Quality for the
3 Water Quality Program is hereby reduced by \$181,700 from the Department of
4 Environmental Quality (Federal) Fund from personnel costs for the period
5 July 1, 2026, through June 30, 2027.

6 SECTION 3. FTP AUTHORIZATION. In addition to any other authorization
7 provided by law, the full-time equivalent position authorization provided
8 to the Department of Environmental Quality is hereby increased by four
9 (4.00) for the period July 1, 2026, through June 30, 2027.

10 SECTION 4. CASH TRANSFER FOR AIR PERMITTING FEES. There is hereby ap-
11 propriated and the Office of the State Controller shall transfer the balance
12 of the DEQ Air Permitting Fees Account to the Idaho Air Quality Permitting
13 Fund on July 1, 2026, or as soon thereafter as practicable for the period July
14 1, 2026, through June 30, 2027, to consolidate the two funds and cease to use
15 the DEQ Air Permitting Fees Account.

16 SECTION 5. CASH TRANSFER FOR DRINKING WATER FEES. There is hereby ap-
17 propriated and the Office of the State Controller shall transfer the balance
18 of the DEQ Drinking Water Fees Account to the Public Water System Supervision
19 Fund on July 1, 2026, or as soon thereafter as practicable for the period July
20 1, 2026, through June 30, 2027, to consolidate the two funds and cease to use
21 the DEQ Drinking Water Fees Account.

22 SECTION 6. CASH TRANSFER FOR SOLID WASTE. There is hereby appropriated
23 and the Office of the State Controller shall transfer \$400,000 from the
24 Hazardous Waste Emergency Fund to the Solid Waste Regulatory Fund on July
25 1, 2026, or as soon thereafter as practicable for the period July 1, 2026,
26 through June 30, 2027.

27 SECTION 7. An emergency existing therefor, which emergency is hereby
28 declared to exist, this act shall be in full force and effect on and after
29 July 1, 2026.